

Senate File 2432

H-8277

1 Amend the amendment, H-8260, to Senate File 2432, as
2 amended, passed, and reprinted by the Senate, as follows:

3 1. Page 1, by striking lines 9 through 21 and inserting:
4 <Sec. _____. Section 8A.209, subsection 4, Code 2026, is
5 amended by adding the following new paragraph:

6 NEW PARAGRAPH. *d.* (1) Enforces youth-protective policies
7 and allows a parent or legal guardian access to monitor their
8 child's borrowing activity. Each eligible library shall
9 submit to the department an annual report as prescribed by the
10 department providing proof of youth-protective policies. For
11 purposes of this paragraph:

12 (a) "*Material harmful to minors*" means any book, magazine,
13 pamphlet, newspaper, document, image, photograph, drawing,
14 film, video, digital file, audio recording, or other material,
15 whether printed, electronic, or digital, described by all of
16 the following:

17 (i) Taken as a whole from the perspective of the average
18 minor and considering the dominant theme of the material, the
19 material appeals to the prurient interest of a minor in sex,
20 nudity, or excretion. "*Prurient interest*" means a shameful or
21 morbid interest as distinguished from a candid interest.

22 (ii) The material depicts, describes, or represents, in a
23 manner patently offensive with respect to what is suitable for
24 a minor under contemporary community standards, one or more of
25 the following:

26 (A) Sexual intercourse, including genital-genital,
27 oral-genital, anal-genital, or oral-anal contact, whether
28 between persons of the same or opposite sex or between a human
29 and an animal.

30 (B) Masturbation.

31 (C) Sadistic or masochistic abuse for the purpose of sexual
32 stimulation.

33 (D) Exhibition or graphic description of the genitals,
34 pubic area, or buttocks for the purpose of sexual stimulation.

35 (E) Any touching of the genitals, pubic area, or buttocks

1 for the purpose of sexual stimulation.

2 (F) Sexual acts involving bondage, domination, humiliation,
3 or degradation for the purpose of sexual stimulation.

4 (iii) Taken as a whole from the perspective of a reasonable
5 person evaluating the material's value to a minor, the material
6 lacks serious literary, artistic, political, or scientific
7 value for minors.

8 (b) "*Youth-protective policies*" means policies which prevent
9 material harmful to minors from being accessed by a minor
10 without permission from the minor's parent or legal guardian.

11 (2) (a) Subparagraph (1) shall not be construed to
12 restrict, condition, or burden an adult's access to any library
13 material or restrict an adult's access to a library collection.

14 (b) Subsection (1) shall not be construed to require a
15 library to remove, limit access to, suppress, or destroy any
16 library material.>

17 2. Page 2, after line 5 by inserting:

18 <Sec. _____. NEW SECTION. 8A.213 Civil action.

19 1. For purposes of this section, unless the context
20 otherwise requires:

21 a. "*Material harmful to minors*" means any book, magazine,
22 pamphlet, newspaper, document, image, photograph, drawing,
23 film, video, digital file, audio recording, or other material,
24 whether printed, electronic, or digital, described by all of
25 the following:

26 (1) Taken as a whole from the perspective of the average
27 minor and considering the dominant theme of the material, the
28 material appeals to the prurient interest of a minor in sex,
29 nudity, or excretion.

30 (2) The material depicts, describes, or represents, in a
31 manner patently offensive with respect to what is suitable for
32 a minor under contemporary community standards, one or more of
33 the following:

34 (a) Sexual intercourse, including genital-genital,
35 oral-genital, anal-genital, or oral-anal contact, whether

1 between persons of the same or opposite sex or between a human
2 and an animal.

3 (b) Masturbation.

4 (c) Sadistic or masochistic abuse for the purpose of sexual
5 stimulation.

6 (d) Exhibition or graphic description of the genitals,
7 pubic area, or buttocks for the purpose of sexual stimulation.

8 (e) Any touching of the genitals, pubic area, or buttocks
9 for the purpose of sexual stimulation.

10 (f) Sexual acts involving bondage, domination, humiliation,
11 or degradation for the purpose of sexual stimulation.

12 (3) Taken as a whole from the perspective of a reasonable
13 person evaluating the material's value to a minor, the material
14 lacks serious literary, artistic, political, or scientific
15 value for minors.

16 *b. "Prurient interest"* means a shameful or morbid interest
17 as distinguished from a candid interest.

18 *c. "Youth-protective policies"* means policies which prevent
19 material harmful to minors from being accessed by a minor
20 without permission from the minor's parent or legal guardian.

21 2. A parent or legal guardian of an unemancipated minor may
22 bring a civil action on behalf of the minor against a public
23 library, a library board, a library director, or a library
24 employee for permitting a minor's access to material harmful
25 to minors.

26 3. A court may award any combination of injunctive relief,
27 declaratory relief, actual damages, or attorney fees to a
28 plaintiff under this section if the court finds all of the
29 following by clear and convincing evidence:

30 *a.* The material the minor accessed was material harmful to
31 minors.

32 *b.* The defendant willfully or wantonly disseminated the
33 material harmful to minors to the minor, or the defendant
34 willfully or wantonly directed, urged, promoted, or
35 affirmatively pushed the material harmful to minors to the

1 minor.

2 *c.* The public library did not have permission from the
3 minor's parent or legal guardian on file to allow the minor to
4 access the material harmful to minors at the time the minor
5 accessed the material harmful to minors.

6 *d.* The minor suffered actual harm caused by the defendant's
7 conduct.

8 4. This section shall not be construed to make a public
9 library, a library board, a library director, or a library
10 employee liable for any of the following:

11 *a.* Simple negligence.

12 *b.* A cataloging error.

13 *c.* A shelving error.

14 *d.* An isolated inadvertent action.

15 *e.* Merely making material available in a public library
16 collection.

17 *f.* A difference in opinion of whether material has serious
18 literary, artistic, political, or scientific value.

19 5. *a.* A public library employee shall not be liable under
20 this section if, at the time of the alleged conduct, the
21 library had adopted and was materially complying with written
22 policies and procedures reasonably designed to prevent a
23 violation of this section.

24 *b.* Paragraph "a" shall not apply if a plaintiff proves by
25 clear and convincing evidence that a defendant knew the library
26 adopted written policies and procedures designed to prevent a
27 violation of this section but intentionally acted outside, or
28 willfully disregarded, the written policies and procedures.>

29 3. Page 2, line 19, by striking <age-appropriate> and
30 inserting <youth-protective>

31 4. Page 3, line 7, by striking <age-appropriate> and
32 inserting <youth-protective>

33 5. Page 3, line 9, by striking <Age-appropriate material>
34 and inserting <Material harmful to minors>

35 6. Page 3, line 11, by striking <age-appropriate> and

1 inserting <youth-protective>
2 7. Page 3, line 17, by striking <age-appropriate> and
3 inserting <youth-protective>
4 8. Page 3, line 21, by striking <age-appropriate> and
5 inserting <youth-protective>
6 9. Page 3, line 26, by striking <the materials are
7 age-appropriate> and inserting <any of the materials are
8 material harmful to minors>
9 10. Page 3, lines 27 and 28, by striking <Material deemed
10 inappropriate for> and inserting <Material harmful to>
11 11. Page 3, line 32, by striking <age-appropriate> and
12 inserting <material harmful to minors>
13 12. Page 3, line 33, after <allow> by inserting <a minimum
14 of>
15 13. Page 3, line 34, by striking <up to> and inserting <a
16 minimum of>
17 14. Page 4, line 8, by striking <removal> and inserting
18 <restriction>
19 15. Page 4, line 19, by striking <age-appropriate
20 materials> and inserting <material harmful to minors, as that
21 term is defined in section 8A.213,>
22 16. Page 4, line 22, by striking <certain materials> and
23 inserting <material harmful to minors>
24 17. Page 4, line 28, by striking <removal> and inserting
25 <restriction>
26 18. Page 4, line 35, after <person.> by inserting <The
27 designation of, or proposed designation of, material as
28 material harmful to minors shall not be used as the basis
29 for restricting material to individuals who are not minors.
30 Libraries shall establish policies as necessary to ensure that
31 library patrons who are not minors are not inconvenienced or
32 impeded from accessing material designated, or proposed to be
33 designated, as material harmful to minors.>
34 19. Page 5, lines 9 and 10, by striking <age-appropriate
35 material> and inserting <material harmful to minors>

1 20. Page 5, lines 10 and 11, by striking <halt access to
2 the subject materials> and inserting <prevent minor access to
3 the material>

4 21. Page 6, line 20, by striking <Age-appropriate material>
5 and inserting <Material harmful to minors>

6 22. Page 6, line 22, by striking <age-appropriate> and
7 inserting <youth-protective>

8 23. Page 6, line 25, by striking <violations of a policy
9 that are> and inserting <violation of a policy adopted under
10 this section that is>

11 24. Page 6, line 28, by striking <age-appropriate> and
12 inserting <youth-protective>

13 25. Page 6, line 32, by striking <age-appropriate> and
14 inserting <youth-protective>

15 26. Page 7, by striking lines 1 through 5 and inserting:

16 <2. a. Material harmful to minors, as defined in section
17 8A.212, held in a public library's collection prior to July 1,
18 2027, shall be maintained in compliance with written policies
19 and procedures to prohibit minors from accessing material
20 harmful to minors without authorization as the material comes
21 under curatorial review in the ordinary course of collection
22 management.

23 b. Notwithstanding subsection 1, each public library
24 shall complete the review and classification of the library's
25 collection and restrict access to material harmful to minors
26 no later than July 1, 2032. A court shall consider a library's
27 good-faith progress toward compliance under this section when
28 making a determination under section 8A.213 regarding conduct
29 prior to July 1, 2032. A public library that demonstrates
30 documented, ongoing review and classification to comply with
31 this section shall not be subject to liability under section
32 8A.213 solely on the basis that the library was not fully
33 compliant before July 1, 2032, unless the plaintiff proves that
34 the library willfully or wantonly failed to make reasonable
35 progress.>

1 27. Page 7, line 8, by striking <age-appropriate> and
2 inserting <material harmful to minors>
3 28. Page 7, after line 11 by inserting:
4 <4. This section shall not be construed to require a library
5 to remove, limit access to, suppress, or destroy any library
6 material.>
7 29. Page 7, line 19, by striking <removal> and inserting
8 <restriction>
9 30. Page 7, line 19, after <material> by inserting <harmful
10 to minors, as that term is defined in section 8A.213,>
11 31. Page 7, line 30, by striking <age-appropriate
12 materials> and inserting <material harmful to minors>
13 32. Page 7, line 33, by striking <certain materials> and
14 inserting <the material alleged to be material harmful to
15 minors>
16 33. Page 8, line 4, by striking <removal> and inserting
17 <restriction>
18 34. Page 8, lines 19 and 20, by striking <age-appropriate
19 material,> and inserting <material harmful to minors, as that
20 term is defined in section 8A.213,>

THOMSON of Floyd